

		The Court Clerk is ordered to file the UD-105 Answer attached to Defendant's Motion to Set Aside. The Court sets August 19, 2026 at 8:30 AM in C61 for a Court Trial. The Court Clerk is to provide notice of the Court's ruling.
4	30-2026-01567697 Kelly vs. Solomonian	The Court has read and considered the Defendants' Motion to Set Aside the Judgment and Any Default and to Quash Any Writ of Possession/Execution (ROA 94) and Plaintiff's Opposition (ROA 120). The Court takes Judicial Notice of the 7/31/2026 Minute Order (ROA 116), the 7/22/2026 Minute Order (ROA 91), Judgment-Unlawful Detainer (ROA 64), Request for Entry of Default (ROA 65), Writ of Possession (ROA 66), Motion for Reconsideration of Denial of Defendants' Motion to Strike Plaintiff's Unlawful Detainer Complaint (ROA 52), and Order on Appeal – Appeals (ROA 123). On June 23, 2026, the Court denied Defendants' Motion to Strike the Complaint and ordered Defendants to file an Answer within five (5) business days. Defendant Patrick Solomonian, a licensed attorney, represents both himself and Defendant Maxx Solomonian. Attorney Solomonian was present in court when the ruling was announced and therefore had actual notice of the Court's order. On June 29, 2026, four (4) business days after the Court's June 23, 2026 order, Attorney Solomonian filed a Motion for Reconsideration, which was calendared for hearing on July 10, 2026, at 8:30 a.m. Although Defendant's declaration states that the motion was filed on June 30, 2026, the Court's electronic filing record reflects that the Motion for Reconsideration (ROA 52) was filed on June 29, 2026. Attorney Solomonian did not seek ex parte relief to shorten time, did not file a petition for writ or a notice of appeal, and did not request a stay of the Court's June 23, 2026 order pending determination of the Motion for Reconsideration. On July 10, 2026, at approximately 9:26 a.m., the Court denied Defendants' Motion for Reconsideration (ROA 60). Later that same day, at 3:54 p.m., Plaintiff electronically filed a Request for Entry of Default (ROA 65). Pursuant to that request, the Clerk entered the defaults of Defendants Patrick Solomonian and Maxx Solomonian on July 10, 2026. The Clerk thereafter entered judgment in unlawful detainer (UD-110) and issued the Writ of Possession on July 13, 2026. Despite having actual knowledge of the Court's June 23, 2026 order requiring an Answer within five (5) business days, knowing that no stay of that order had been issued, and being aware that the Motion for Reconsideration had been denied on July 10, 2026, Attorney Solomonian did not file an Answer at any time before the defaults were entered.

		Attorney Solomonian contends that the Court denied the Motion to Strike because it was untimely. The record does not support that assertion. At no point during the June 23, 2026 hearing did the Court state, either orally or in its written order, that the Motion to Strike was untimely. To the contrary, the Court heard and considered the motion on its merits, entertained argument from both parties, and thereafter denied the motion. As reflected in the Court's June 23, 2026 order, the Court concluded that the filing of the Motion to Strike constituted a general appearance under Code of Civil Procedure section 1014. The Court further concluded that Code of Civil Procedure section 435(d) did not extend Defendants' time to respond to the Complaint by demurrer. Accordingly, the Court ordered Defendants to file an Answer within five (5) business days. Defendant's characterization of the Court's ruling is inconsistent with both the oral proceedings and the written order. The Court further finds that Defendants have failed to satisfy their burden of establishing entitlement to relief under Code of Civil Procedure section 473(b) by a preponderance of the evidence. Section 473(b) expressly provides: "Application for this relief shall be accompanied by a copy of the answer or other pleading proposed to be filed therein, otherwise the application shall not be granted." (Code Civ. Proc., § 473(b).) Defendants failed to attach or lodge a proposed Answer with their motion to set aside the defaults. This omission alone precludes relief under the statute. Even if the procedural defect were disregarded, Defendants have failed to demonstrate mistake, inadvertence, surprise, or excusable neglect. The evidence establishes that Attorney Solomonian had actual notice of the Court's June 23, 2026 order and knowingly elected not to comply with it. Instead, he chose to file a Motion for Reconsideration without seeking any stay of the Court's order. A motion for reconsideration does not automatically stay enforcement of the underlying order or suspend a party's obligation to comply with it. Following the denial of the Motion for Reconsideration on the morning of July 10, 2026, Attorney Solomonian still took no action to file an Answer, seek emergency relief, or otherwise obtain a stay before Plaintiff requested entry of default later that afternoon. The Court finds that this course of conduct was the product of a deliberate litigation decision rather than excusable neglect. Accordingly, Defendants have failed to establish grounds for mandatory or discretionary relief under Code of Civil Procedure section 473(b). Therefore, the Court DENIES the Defendants' Motion to Set Aside Default Judgment. The Court Clerk is ordered to notify the Orange County Sheriff's Department to proceed with the writ of possession and lockout forthwith. The Court Clerk is to provide notice of the Court's ruling.
5	30-2026-01548429 Lu vs. Hatoka	The Court has read and considered the Defendants' Motion to Reopen and Reconsider Judgment (ROA 66)